UNIVERSITY GRANTS COMMISSION
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UGC REGULATIONS ON CURBING THE MENACE OF RAGGING IN HIGHER EDUCATIONAL INSTITUTIONS, 2009.

(under Section 26 (1)(g) of the University Grants Commission Act, 1956)

(TO BE PUBLISHED IN THE GAZETTE OF INDIA PART III, SECTION-4)

F.1-16/2007(CPP-II) **Dated 17th June, 2009.**

PREAMBLE.

In view of the directions of the Hon'ble Supreme Court in the matter of "University of Kerala v/s. Council, Principals, Colleges and others" in SLP no. 24295 of 2006 dated 16.05.2007 and that dated 8.05.2009 in Civil Appeal number 887 of 2009, and in consideration of the determination of the Central Government and the University Grants Commission to prohibit, prevent and eliminate the scourge of ragging including any conduct by any student or students whether by words spoken or written or by an act which has the effect of teasing, treating or handling with rudeness a fresher or any other student, or indulging in rowdy or indisciplined activities by any student or students which causes or is likely to cause annoyance, hardship or psychological harm or to raise fear or apprehension thereof in any fresher or any other student or asking any student to do any act which such student will not in the ordinary course do and which has the effect of causing or generating a sense of shame, or torment or embarrassment so as to adversely affect the physique or psyche of such fresher or any other student, with or without an intent to derive a sadistic pleasure or showing off power, authority or superiority by a student over any fresher or any other student, in all higher education institutions in the country, and thereby, to provide for the healthy development, physically and psychologically, of all students, the University Grants Commission, in consultation with the Councils, brings forth this Regulation.

In exercise of the powers conferred by Clause (g) of sub-section (1) of Section 26 of the University Grants Commission Act, 1956, the University Grants Commission hereby makes the following Regulations, namely;

1. Title, commencement and applicability.-

1.1 These regulations shall be called the "UGC Regulations on Curbing the Menace of Ragging in Higher Educational Institutions, 2009".

1.2 They shall come into force from the date of their publication in the Official Gazette.

1.3 They shall apply to all the institutions coming within the definition of an University under sub-section (f) of section (2) of the University Grants Commission Act, 1956, and to all institutions deemed to be a university under Section 3 of the University Grants Commission Act, 1956, to all other higher educational institutions, or elements of such universities or institutions, including its departments, constituent units and all the premises, whether being academic, residential, playgrounds, canteen, or other such premises of such universities, deemed universities and higher educational institutions, whether located within the campus or outside, and to all means of transportation of students, whether public or private, accessed by students for the pursuit of studies in such universities, deemed universities and higher educational institutions.

2. Objectives.-

To prohibit any conduct by any student or students whether by words spoken or written or by an act which has the effect of teasing, treating or handling with rudeness a fresher or any other student, or indulging in rowdy or indisciplined activities by any student or students which causes or is likely to cause annoyance, hardship or psychological harm or to raise fear or apprehension thereof in any fresher or any other student or asking any student to do any act which such student will not in the ordinary course do and which has the effect of causing or generating a sense of shame, or torment or embarrassment so as to adversely affect the physique or psyche of such fresher or any other student, with or without an intent to derive a sadistic pleasure or showing off power, authority or superiority by a student over any fresher or any other student; and thereby, to eliminate ragging in all its forms from universities, deemed universities and other higher educational institutions in the country by prohibiting it

under these Regulations, preventing its occurrence and punishing those who indulge in ragging as provided for in these Regulations and the appropriate law in force.

3. What constitutes Ragging.- Ragging constitutes one or more of any of the following acts:

a. any conduct by any student or students whether by words spoken or written or by an act which has the effect of teasing, treating or handling with rudeness a fresher or any other student;
b. indulging in rowdy or indisciplined activities by any student or students which causes or is likely to cause annoyance, hardship, physical or psychological harm or to raise fear or apprehension thereof in any fresher or any other student;
c. asking any student to do any act which such student will not in the ordinary course do and which has the effect of causing or generating a sense of shame, or torment or embarrassment so as to adversely affect the physique or psyche of such fresher or any other student;
d. any act by a senior student that prevents, disrupts or disturbs the regular academic activity of any other student or a fresher;
e. exploiting the services of a fresher or any other student for completing the academic tasks assigned to an individual or a group of students.
f. any act of financial extortion or forceful expenditure burden put on a fresher or any other student by students;
g. any act of physical abuse including all variants of it: sexual abuse, homosexual assaults, stripping, forcing obscene and lewd acts, gestures, causing bodily harm or any other danger to health or person;
h. any act or abuse by spoken words, emails, post, public insults which would also include deriving perverted pleasure, vicarious or sadistic thrill from actively or passively participating in the discomfiture to fresher or any other student ;
i. any act that affects the mental health and self-confidence of a fresher or any other student

with or without an intent to derive a sadistic pleasure or showing off power, authority or superiority by a student over any fresher or any other student.

4. Definitions.-

1) In these regulations unless the context otherwise requires,-

a) "Act" means, the University Grants Commission Act, 1956 (3 of 1956);

b) "Academic year" means the period from the commencement of admission of students in any course of study in the institution up to the completion of academic requirements for that particular year.

c) "Anti-Ragging Helpline" means the Helpline established under clause (a) of Regulation 8.1 of these Regulations.

d) "Commission" means the University Grants Commission;

e) "Council" means a body so constituted by an Act of Parliament or an Act of any State Legislature for setting, or co-ordinating or maintaining standards in the relevant areas of higher education, such as the All India Council for Technical Education (AICTE), the Bar Council of India (BCI), the Dental Council of India (DCI), the Distance Education Council (DEC), the Indian Council of Agricultural Research (ICAR), the Indian Nursing Council (INC), the Medical Council of India (MCI), the National Council for Teacher Education (NCTE), the Pharmacy Council of India (PCI), etc. and the State Higher Education Councils.

f) "District Level Anti-Ragging Committee" means the Committee, headed by the District Magistrate, constituted by the State Government, for the control and elimination of ragging in institutions within the jurisdiction of the district.

g) "Head of the institution" means the Vice-Chancellor in case of a university or a deemed to be university, the Principal or the Director or such other designation as the executive head of the institution or the college is referred.

h) "Fresher" means a student who has been admitted to an institution and who is undergoing his/her first year of study in such institution.

i) "Institution" means a higher educational institution including, but not limited to an university, a deemed to be university, a college, an institute, an institution of national importance set up by an Act of Parliament or a constituent unit of such institution, imparting higher education beyond 12 years of schooling leading to, but not necessarily culminating in, a degree (graduate, postgraduate and/or higher level) and/or to a university diploma.

j) "NAAC" means the National Academic and Accreditation Council established by the Commission under section 12(ccc) of the Act;

k) "State Level Monitoring Cell" means the body constituted by the State Government for the control and elimination of ragging in institutions within the jurisdiction of the State, established under a State Law or on the advice of the Central Government, as the case may be.

(2) Words and expressions used and not defined herein but defined in the Act or in the General Clauses Act, 1897, shall have the meanings respectively assigned to them in the Act or in the General Clauses Act, 1897, as the case may be.

5. Measures for prohibition of ragging at the institution level:-

a) No institution or any part of it thereof, including its elements, including, but not limited to, the departments, constituent units, colleges, centres of studies and all its premises, whether academic, residential, playgrounds, or canteen, whether located within the campus or outside, and in all means of transportation of students, whether public or private, accessed by students for the pursuit of studies in such institutions, shall permit or condone any reported incident of ragging in any form; and all institutions shall take all necessary and required measures, including but not limited to the provisions of these Regulations, to achieve the objective of eliminating ragging, within the institution or outside,

b) All institutions shall take action in accordance with these Regulations against those found guilty of ragging and/or abetting ragging, actively or passively, or being part of a conspiracy to promote ragging.

6 Measures for prevention of ragging at the institution level.-

6.1 An institution shall take the following steps in regard to admission or registration of students; namely,

a) Every public declaration of intent by any institution, in any electronic, audio-visual or print or any other media, for admission of students to any course of study shall expressly provide that ragging is totally prohibited in the institution,

and anyone found guilty of ragging and/or abetting ragging, whether actively or passively, or being a part of a conspiracy to promote ragging, is liable to be punished in accordance with these Regulations as well as under the provisions of any penal law for the time being in force.

b) The brochure of admission/instruction booklet or the prospectus, whether in print or electronic format, shall prominently print these Regulations in full.

Provided that the institution shall also draw attention to any law concerning ragging and its consequences, as may be applicable to the institution publishing such brochure of admission/instruction booklet or the prospectus.

Provided further that the telephone numbers of the Anti-Ragging Helpline and all the important functionaries in the institution, including but not limited to the Head of the institution, faculty members, members of the Anti-Ragging Committees and Anti-Ragging Squads, District and Sub-Divisional authorities, Wardens of hostels, and other functionaries or authorities where relevant, shall be published in the brochure of admission/instruction booklet or the prospectus.

c) Where an institution is affiliated to a University and publishes a brochure of admission/instruction booklet or a prospectus, the affiliating university shall ensure that the affiliated institution shall comply with the provisions of clause (a) and clause (b) of Regulation 6.1 of these Regulations.

d) The application form for admission, enrolment or registration shall contain an affidavit, mandatorily in English and in Hindi and/or in one of the regional languages known to the applicant, as provided in the English language in Annexure I to these Regulations, to be filled up and signed by the applicant to the effect that he/she has read and understood the provisions of these Regulations as well as the provisions of any other law for the time being in force, and is aware of the prohibition of ragging and the punishments prescribed, both under penal laws as well as under these Regulations and also affirm to the effect that he/she has not been expelled and/or debarred by any institution and further aver that he/she would not indulge, actively or passively, in the act or abet the act of ragging and if found guilty of ragging and/or abetting ragging, is liable to be proceeded against under these Regulations or under any penal law or any

other law for the time being in force and such action would include but is not limited to debarment or expulsion of such student.

e) The application form for admission, enrolment or registration shall contain an affidavit, mandatorily in English and in Hindi and/or in one of the regional languages known to the parents/guardians of the applicant, as provided in the English language in Annexure I to these Regulations, to be filled up and signed by the parents/guardians of the applicant to the effect that he/she has read and understood the provisions of these Regulations as well as the provisions of any other law for the time being in force, and is aware of the prohibition of ragging and the punishments prescribed, both under penal laws as well as under these Regulations and also affirm to the effect that his/her ward has not been expelled and/or debarred by any institution and further aver that his/her ward would not indulge, actively or passively, in the act or abet the act of ragging and if found guilty of ragging and/or abetting ragging, his/her ward is liable to be proceeded against under these Regulations or under any penal law or any other law for the time being in force and such action would include but is not limited to debarment or expulsion of his/her ward.

f) The application for admission shall be accompanied by a document in the form of, or annexed to, the School Leaving Certificate/Transfer Certificate/Migration Certificate/Character Certificate reporting on the inter-personal/social behavioural pattern of the applicant, to be issued by the school or institution last attended by the applicant, so that the institution can thereafter keep watch on the applicant, if admitted, whose behaviour has been commented in such document.

g) A student seeking admission to a hostel forming part of the institution, or seeking to reside in any temporary premises not forming part of the institution, including a private commercially managed lodge or hostel, shall have to submit additional affidavits countersigned by his/her parents/guardians in the form prescribed in Annexure I and Annexure II to these Regulations respectively along with his/her application.

h) Before the commencement of the academic session in any institution, the Head of the Institution shall convene and address a meeting of various functionaries/agencies, such as Hostel Wardens, representatives of students,

parents/ guardians, faculty, district administration including the police, to discuss the measures to be taken to prevent ragging in the institution and steps to be taken to identify those indulging in or abetting ragging and punish them.

i) The institution shall, to make the community at large and the students in particular aware of the dehumanizing effect of ragging, and the approach of the institution towards those indulging in ragging, prominently display posters depicting the provisions of penal law applicable to incidents of ragging, and the provisions of these Regulations and also any other law for the time being in force, and the punishments thereof, shall be prominently displayed on Notice Boards of all departments, hostels and other buildings as well as at places, where students normally gather and at places, known to be vulnerable to occurrences of ragging incidents.

j) The institution shall request the media to give adequate publicity to the law prohibiting ragging and the negative aspects of ragging and the institution's resolve to ban ragging and punish those found guilty without fear or favour.

k) The institution shall identify, properly illuminate and keep a close watch on all locations known to be vulnerable to occurrences of ragging incidents.

l) The institution shall tighten security in its premises, especially at vulnerable places and intense policing by Anti-Ragging Squad, referred to in these Regulations and volunteers, if any, shall be resorted to at such points at odd hours during the first few months of the academic session.

m) The institution shall utilize the vacation period before the start of the new academic year to launch a publicity campaign against ragging through posters, leaflets and such other means, as may be desirable or required, to promote the objectives of these Regulations.

n) The faculties/departments/units of the institution shall have induction arrangements, including those which anticipate, identify and plan to meet any special needs of any specific section of students, in place well in advance of the beginning of the academic year with an aim to promote the objectives of this Regulation.

o) Every institution shall engage or seek the assistance of professional counsellors before the commencement of the academic session, to be available

when required by the institution, for the purposes of offering counselling to freshers and to other students after the commencement of the academic year.

p) The head of the institution shall provide information to the local police and local authorities, the details of every privately commercially managed hostels or lodges used for residential purposes by students enrolled in the institution and the head of the institution shall also ensure that the Anti-Ragging Squad shall ensure vigil in such locations to prevent the occurrence of ragging therein.

6.2 An institution shall, on admission or enrolment or registration of students, take the following steps, namely;

a) Every fresh student admitted to the institution shall be given a printed leaflet detailing to whom he/she has to turn to for help and guidance for various purposes including addresses and telephone numbers, so as to enable the student to contact the concerned person at any time, if and when required, of the Anti-Ragging Helpline referred to in these Regulations, Wardens, Head of the institution, all members of the anti-ragging squads and committees, relevant district and police authorities.

b) The institution, through the leaflet specified in clause (a) of Regulation 6.2 of these Regulations shall explain to the freshers, the arrangements made for their induction and orientation which promote efficient and effective means of integrating them fully as students with those already admitted o the institution in earlier years.

c) The leaflet specified in clause (a) of Regulation 6.2 of these Regulations shall inform the freshers about their rights as bona fide students of the institution and clearly instructing them that they should desist from doing anything, with or against their will, even if ordered to by the seniors students, and that any attempt of ragging shall be promptly reported to the Anti-ragging Squad or to the Warden or to the Head of the institution, as the case may be.

d) The leaflet specified in clause (a) of Regulation 6.2 of these Regulations shall contain a calendar of events and activities laid down by the institution to facilitate and complement familiarization of freshers with the academic environment of the institution.

e) The institution shall, on the arrival of senior students after the first week or after the second week, as the case may be, schedule orientation programmes as follows, namely; (i) joint sensitization programme and counselling of both freshers and senior students by a professional counsellor, referred to in clause (o) of Regulation 6.1 of these Regulations; (ii) joint orientation programme of freshers and seniors to be addressed by the Head of the institution and the anti -ragging committee;(iii) organization on a large scale of cultural, sports and other activities to provide a platform for the freshers and seniors to interact in the presence of faculty members ; (iv) in the hostel, the warden should address all students; and may request two junior colleagues from the college faculty to assist the warden by becoming resident tutors for a temporary duration.(v) as far as possible faculty members should dine with the hostel residents in their respective hostels to instil a feeling of confidence among the freshers.

f) The institution shall set up appropriate committees, including the course-in-charge, student advisor, Wardens and some senior students as its members, to actively monitor, promote and regulate healthy interaction between the freshers, junior students and senior students.

g) Freshers or any other student(s), whether being victims, or witnesses, in any incident of ragging, shall be encouraged to report such occurrence, and the identity of such informants shall be protected and shall not be subject to any adverse consequence only for the reason for having reported such incidents.

h) Each batch of freshers, on arrival at the institution, shall be divided into small groups and each such group shall be assigned to a member of the faculty, who shall interact individually with each member of the group every day for ascertaining the problems or difficulties, if any, faced by the fresher in the institution and shall extend necessary help to the fresher in overcoming the same.

i) It shall be the responsibility of the member of the faculty assigned to the group of freshers, to coordinate with the Wardens of the hostels and to make surprise visits to the rooms in such hostels, where a member or members of the group are lodged; and such member of faculty shall maintain a diary of his/her interaction with the freshers under his/her charge.

j) Freshers shall be lodged, as far as may be, in a separate hostel block, and where such facilities are not available, the institution shall ensure that access of seniors to accommodation allotted to freshers is strictly monitored by wardens, security guards and other staff of the institution.

k) A round the clock vigil against ragging in the hostel premises, in order to prevent ragging in the hostels after the classes are over, shall be ensured by the institution.

l) It shall be the responsibility of the parents/guardians of freshers to promptly bring any instance of ragging to the notice of the Head of the Institution.

m) Every student studying in the institution and his/her parents/guardians shall provide the specific affidavits required under clauses (d), (e) and (g) of Regulation 6.1 of these Regulations at the time of admission or registration, as the case may be, during each academic year.

n) Every institution shall obtain the affidavit from every student as referred to above in clause (m) of Regulation 6.2 and maintain a proper record of the same and to ensure its safe upkeep thereof, including maintaining the copies of the affidavit in an electronic form, to be accessed easily when required either by the Commission or any of the Councils or by the institution or by the affiliating University or by any other person or organisation authorised to do so.

o) Every student at the time of his/her registration shall inform the institution about his/her place of residence while pursuing the course of study, and in case the student has not decided his/her place of residence or intends to change the same, the details of his place of residence shall be provided immediately on deciding the same; and specifically in regard to a private commercially managed lodge or hostel where he/she has taken up residence.

p) The Head of the institution shall, on the basis of the information provided by the student under clause (o) of Regulation 6.2, apportion sectors to be assigned to members of the faculty, so that such member of faculty can maintain vigil and report any incident of ragging outside the campus or en route while commuting to the institution using any means of transportation of students, whether public or private.

q) The Head of the institution shall, at the end of each academic year, send a letter to the parents/guardians of the students who are completing their first year in the institution, informing them about these Regulations and any law for the time being in force prohibiting ragging and the punishments thereof as well as punishments prescribed under the penal laws, and appealing to them to impress upon their wards to desist from indulging in ragging on their return to the institution at the beginning of the academic session next.

6.3 Every institution shall constitute the following bodies; namely,

a) Every institution shall constitute a Committee to be known as the Anti-Ragging Committee to be nominated and headed by the Head of the institution, and consisting of representatives of civil and police administration, local media, Non Government Organizations involved in youth activities, representatives of faculty members, representatives of parents, representatives of students belonging to the freshers' category as well as senior students, non-teaching staff; and shall have a diverse mix of membership in terms of levels as well as gender.

b) It shall be the duty of the Anti-Ragging Committee to ensure compliance with the provisions of these Regulations as well as the provisions of any law for the time being in force concerning ragging; and also to monitor and oversee the performance of the Anti-Ragging Squad in prevention of ragging in the institution.

c) Every institution shall also constitute a smaller body to be known as the Anti-Ragging Squad to be nominated by the Head of the Institution with such representation as may be considered necessary for maintaining vigil, oversight and patrolling functions and shall remain mobile, alert and active at all times.

Provided that the Anti-Ragging Squad shall have representation of various members of the campus community and shall have no outside representation.

d) It shall be the duty of the Anti-Ragging Squad to be called upon to make surprise raids on hostels, and other places vulnerable to incidents of, and having the potential of, ragging and shall be empowered to inspect such places.

e) It shall also be the duty of the Anti-Ragging Squad to conduct an on-the-spot enquiry into any incident of ragging referred to it by the Head of the institution

or any member of the faculty or any member of the staff or any student or any parent or guardian or any employee of a service provider or by any other person, as the case may be; and the enquiry report along with recommendations shall be submitted to the Anti-Ragging Committee for action under clause (a) of Regulation 9.1.

Provided that the Anti-Ragging Squad shall conduct such enquiry observing a fair and transparent procedure and the principles of natural justice and after giving adequate opportunity to the student or students accused of ragging and other witnesses to place before it the facts, documents and views concerning the incident of ragging, and considering such other relevant information as may be required.

f) Every institution shall, at the end of each academic year, in order to promote the objectives of these Regulations, constitute a Mentoring Cell consisting of students volunteering to be Mentors for freshers, in the succeeding academic year; and there shall be as many levels or tiers of Mentors as the number of batches in the institution, at the rate of one Mentor for six freshers and one Mentor of a higher level for six Mentors of the lower level.

g) Every University shall constitute a body to be known as Monitoring Cell on Ragging, which shall coordinate with the affiliated colleges and institutions under the domain of the University to achieve the objectives of these Regulations; and the Monitoring Cell shall call for reports from the Heads of institutions in regard to the activities of the Anti-Ragging Committees, Anti - Ragging Squads, and the Mentoring Cells at the institutions, and it shall also keep itself abreast of the decisions of the District level Anti-Ragging Committee headed by the District Magistrate.

h) The Monitoring Cell shall also review the efforts made by institutions to publicize anti-ragging measures, soliciting of affidavits from parents/guardians and from students, each academic year, to abstain from ragging activities or willingness to be penalized for violations; and shall function as the prime mover for initiating action on the part of the appropriate authorities of the university for amending the Statutes or Ordinances or Bye-laws to facilitate the implementation of anti-ragging measures at the level of the institution.

6.4 Every institution shall take the following other measures, namely;

a) Each hostel or a place where groups of students reside, forming part of the institution, shall have a full-time Warden, to be appointed by the institution as per the eligibility criteria laid down for the post reflecting both the command and control aspects of maintaining discipline and preventing incidents of ragging within the hostel, as well as the softer skills of counselling and communicating with the youth outside the class-room situation; and who shall reside within the hostel, or at the very least, in the close vicinity thereof.

b) The Warden shall be accessible at all hours and be available on telephone and other modes of communication, and for the purpose the Warden shall be provided with a mobile phone by the institution, the number of which shall be publicised among all students residing in the hostel.

c) The institution shall review and suitably enhance the powers of Wardens; and the security personnel posted in hostels shall be under the direct control of the Warden and their performance shall be assessed by them.

d) The professional counsellors referred to under clause (o) of Regulation 6.1 of these Regulations shall, at the time of admission, counsel freshers and/or any other student(s) desiring counselling, in order to prepare them for the life ahead, particularly in regard to the life in hostels and to the extent possible, also involve parents and teachers in the counselling sessions.

e) The institution shall undertake measures for extensive publicity against ragging by means of audio-visual aids, counselling sessions, workshops, painting and design competitions among students and such other measures, as it may deem fit.

f) In order to enable a student or any person to communicate with the Anti-Ragging Helpline, every institution shall permit unrestricted access to mobile phones and public phones in hostels and campuses, other than in class-rooms, seminar halls, library, and in such other places that the institution may deem it necessary to restrict the use of phones.

g) The faculty of the institution and its non-teaching staff, which includes but is not limited to the administrative staff, contract employees, security guards

and employees of service providers providing services within the institution, shall be sensitized towards the ills of ragging, its prevention and the consequences thereof.

h) The institution shall obtain an undertaking from every employee of the institution including all teaching and non-teaching members of staff, contract labour employed in the premises either for running canteen or as watch and ward staff or for cleaning or maintenance of the buildings/lawns and employees of service providers providing services within the institution, that he/she would report promptly any case of ragging which comes to his/her notice.

i) The institution shall make a provision in the service rules of its employees for issuing certificates of appreciation to such members of the staff who report incidents of ragging, which will form part of their service record.

j) The institution shall give necessary instructions to the employees of the canteens and messing, whether that of the institution or that of a service provider providing this service, or their employers, as the case may be, to keep a strict vigil in the area of their work and to report the incidents of ragging to the Head of the institution or members of the Anti-Ragging Squad or members of the Anti-Ragging Committee or the Wardens, as may be required.

k) All Universities awarding a degree in education at any level, shall be required to ensure that institutions imparting instruction in such courses or conducting training programme for teachers include inputs relating to anti-ragging and the appreciation of the relevant human rights, as well as inputs on topics regarding sensitization against corporal punishments and checking of bullying amongst students, so that every teacher is equipped to handle at least the rudiments of the counselling approach.

l) Discreet random surveys shall be conducted amongst the freshers every fortnight during the first three months of the academic year to verify and cross-check whether the institution is indeed free of ragging or not and for the purpose the institution may design its own methodology of conducting such surveys.

m) The institution shall cause to have an entry, apart from those relating to general conduct and behaviour, made in the Migration/Transfer Certificate issued to the student while leaving the institution, as to whether the student has been

punished for committing or abetting an act of ragging, as also whether the student has displayed persistent violent or aggressive behaviour or any inclination to harm others, during his course of study in the institution.

n) Notwithstanding anything contained in these Regulations with regard to obligations and responsibilities pertaining to the authorities or members of bodies prescribed above, it shall be the general collective responsibility of all levels and sections of authorities or functionaries including members of the faculty and employees of the institution, whether regular or temporary, and employees of service providers providing service within the institution, to prevent or to act promptly against the occurrence of ragging or any incident of ragging which comes to their notice.

o) The Heads of institutions affiliated to a University or a constituent of the University, as the case may be, shall, during the first three months of an academic year, submit a weekly report on the status of compliance with Anti-Ragging measures under these Regulations, and a monthly report on such status thereafter, to the Vice-Chancellor of the University to which the institution is affiliated to or recognized by.

p) The Vice Chancellor of each University, shall submit fortnightly reports of the University, including those of the Monitoring Cell on Ragging in case of an affiliating university, to the State Level Monitoring Cell.

7. Action to be taken by the Head of the institution.- On receipt of the recommendation of the Anti Ragging Squad or on receipt of any information concerning any reported incident of ragging, the Head of institution shall immediately determine if a case under the penal laws is made out and if so, either on his own or through a member of the Anti-Ragging Committee authorised by him in this behalf, proceed to file a First Information Report (FIR), within twenty four hours of receipt of such information or recommendation, with the police and local authorities, under the appropriate penal provisions relating to one or more of the following, namely;

i. Abetment to ragging;
ii. Criminal conspiracy to rag;
iii. Unlawful assembly and rioting while ragging;

iv. Public nuisance created during ragging;

v. Violation of decency and morals through ragging;

vi. Injury to body, causing hurt or grievous hurt;

vii. Wrongful restraint;

viii. Wrongful confinement;

ix. Use of criminal force;

x. Assault as well as sexual offences or unnatural offences;

xi. Extortion;

xii. Criminal trespass;

xiii. Offences against property;

xiv. Criminal intimidation;

xv. Attempts to commit any or all of the above mentioned offences against the victim(s);

xvi. Threat to commit any or all of the above mentioned offences against the victim(s);

xvii. Physical or psychological humiliation;

xviii. All other offences following from the definition of "Ragging".

Provided that the Head of the institution shall forthwith report the occurrence of the incident of ragging to the District Level Anti-Ragging Committee and the Nodal officer of the affiliating University, if the institution is an affiliated institution.

Provided further that the institution shall also continue with its own enquiry initiated under clause 9 of these Regulations and other measures without waiting for action on the part of the police/local authorities and such remedial action shall be initiated and completed immediately and in no case later than a period of seven days of the reported occurrence of the incident of ragging.

8. Duties and Responsibilities of the Commission and the Councils.-

8.1 The Commission shall, with regard to providing facilitating communication of information regarding incidents of ragging in any institution, take the following steps, namely;

a) The Commission shall establish, fund and operate, a toll-free Anti-Ragging Helpline, operational round the clock, which could be accessed by students in distress owing to ragging related incidents.

b) Any distress message received at the Anti-Ragging Helpline shall be simultaneously relayed to the Head of the Institution, the Warden of the Hostels, the Nodal Officer of the affiliating University, if the incident reported has taken place in an institution affiliated to a University, the concerned District authorities and if so required, the District Magistrate, and the Superintendent of Police, and shall also be web enabled so as to be in the public domain simultaneously for the media and citizens to access it.

c) The Head of the institution shall be obliged to act immediately in response to the information received from the Anti-Ragging Helpline as at sub-clause (b) of this clause.

d) The telephone numbers of the Anti-Ragging Helpline and all the important functionaries in every institution, Heads of institutions, faculty members, members of the anti-ragging committees and anti ragging squads, district and sub-divisional authorities and state authorities, Wardens of hostels, and other functionaries or authorities where relevant, shall be widely disseminated for access or to seek help in emergencies.

e) The Commission shall maintain an appropriate data base to be created out of affidavits, affirmed by each student and his/her parents/guardians and stored electronically by the institution, either on its or through an agency to be designated by it; and such database shall also function as a record of ragging complaints received, and the status of the action taken thereon.

f) The Commission shall make available the database to a non-governmental agency to be nominated by the Central Government, to build confidence in the public and also to provide information of non compliance with these Regulations to the Councils and to such bodies as may be authorised by the Commission or by the Central Government.

8.2 The Commission shall take the following regulatory steps, namely;

a) The Commission shall make it mandatory for the institutions to incorporate in their prospectus, the directions of the Central Government or the State Level Monitoring Committee with regard to prohibition and consequences of ragging, and that non-compliance with these Regulations and directions so provided, shall be considered as lowering of academic standards by the institution, therefore making it liable for appropriate action.

b) The Commission shall verify that the institutions strictly comply with the requirement of getting the affidavits from the students and their parents/guardians as envisaged under these Regulations.

c) The Commission shall include a specific condition in the Utilization Certificate, in respect of any financial assistance or grants-in-aid to any institution under any of the general or special schemes of the Commission, that the institution has complied with the anti-ragging measures.

d) Any incident of ragging in an institution shall adversely affect its accreditation, ranking or grading by NAAC or by any other authorised accreditation agencies while assessing the institution for accreditation, ranking or grading purposes.

e) The Commission may accord priority in financial grants-in-aid to those institutions, otherwise eligible to receive grants under section 12B of the Act, which report a blemishless record in terms of there being no reported incident of ragging.

f) The Commission shall constitute an Inter-Council Committee, consisting of representatives of the various Councils, the Non-Governmental agency responsible for monitoring the database maintained by the Commission under clause (g) of Regulation 8.1 and such other bodies in higher education, to coordinate and monitor the anti-ragging measures in institutions across the country and to make recommendations from time to time; and shall meet at least once in six months each year.

g) The Commission shall institute an Anti-Ragging Cell within the Commission as an institutional mechanism to provide secretarial support for collection of information and monitoring, and to coordinate with the State Level Monitoring Cell and University level Committees for effective implementation of anti-ragging measures, and the Cell shall also coordinate with the Non-Governmental agency

ANNEXURE II
AFFIDAVIT BY PARENT/GUARDIAN

I, Mr./Mrs./Ms. _____ *(full name of parent/guardian)* father/mother/guardian of , *(full name of student with admission/registration/enrolment number)* , having been admitted to *(name of the institution)*, have received a copy of the UGC Regulations on Curbing the Menace of Ragging in Higher Educational Institutions, 2009, (hereinafter called the "Regulations"), carefully read and fully understood the provisions contained in the said Regulations.

2) I have, in particular, perused clause 3 of the Regulations and am aware as to what constitutes ragging.

3) I have also, in particular, perused clause 7 and clause 9.1 of the Regulations and am fully aware of the penal and administrative action that is liable to be taken against my ward in case he/she is found guilty of or abetting ragging, actively or passively, or being part of a conspiracy to promote ragging.

4) I hereby solemnly aver and undertake that

a) My ward will not indulge in any behaviour or act that may be constituted as ragging under clause 3 of the Regulations.

b) My ward will not participate in or abet or propagate through any act of commission or omission that may be constituted as ragging under clause 3 of the Regulations.

5) I hereby affirm that, if found guilty of ragging, my ward is liable for punishment according to clause 9.1 of the Regulations, without prejudice to any other criminal action that may be taken against my ward under any penal law or any law for the time being in force.

6) I hereby declare that my ward has not been expelled or debarred from admission in any institution in the country on account of being found guilty of, abetting or being part of a conspiracy to promote, ragging; and further affirm that, in case the declaration is found to be untrue, the admission of my ward is liable to be cancelled.

Declared this ___day of _____ month of _____year.

_____
Signature of deponent
Name:
Address:
Telephone/ Mobile No.:

VERIFICATION

Verified that the contents of this affidavit are true to the best of my knowledge and no part of the affidavit is false and nothing has been concealed or misstated therein.
Verified at *(place)* on this the *(day)* of *(month)* , *(year)* .

_____
Signature of deponent

Solemnly affirmed and signed in my presence on this the *(day)* of *(month)* , *(year)* after reading the contents of this affidavit.

OATH COMMISSIONER

ANNEXURE I
AFFIDAVIT BY THE STUDENT

I, _____*(full name of student with admission/registration/enrolment number)* s/o d/o Mr./Mrs./Ms. _____ , having been admitted to _____*(name of the institution)*_____, have received a copy of the UGC Regulations on Curbing the Menace of Ragging in Higher Educational Institutions, 2009, (hereinafter called the "Regulations") carefully read and fully understood the provisions contained in the said Regulations.

2) I have, in particular, perused clause 3 of the Regulations and am aware as to what constitutes ragging.

3) I have also, in particular, perused clause 7 and clause 9.1 of the Regulations and am fully aware of the penal and administrative action that is liable to be taken against me in case I am found guilty of or abetting ragging, actively or passively, or being part of a conspiracy to promote ragging.

4) I hereby solemnly aver and undertake that

   a) I will not indulge in any behaviour or act that may be constituted as ragging under clause 3 of the Regulations.
   b) I will not participate in or abet or propagate through any act of commission or omission that may be constituted as ragging under clause 3 of the Regulations.

5) I hereby affirm that, if found guilty of ragging, I am liable for punishment according to clause 9.1 of the Regulations, without prejudice to any other criminal action that may be taken against me under any penal law or any law for the time being in force.

6) I hereby declare that I have not been expelled or debarred from admission in any institution in the country on account of being found guilty of, abetting or being part of a conspiracy to promote, ragging; and further affirm that, in case the declaration is found to be untrue, I am aware that my admission is liable to be cancelled.

Declared this ___day of _____ month of _____year.

_____
Signature of deponent
Name:

VERIFICATION

Verified that the contents of this affidavit are true to the best of my knowledge and no part of the affidavit is false and nothing has been concealed or misstated therein.

Verified at___*(place)*___on this the *(day)* of ___*(month)*___, *(year)*.

_____
Signature of deponent

Solemnly affirmed and signed in my presence on this the *(day)* of ___*(month)*___, *(year)* after reading the contents of this affidavit.

OATH COMMISSIONER

action; and such action shall be without prejudice to any action that may be taken under the penal laws for abetment of ragging for failure to take timely steps in the prevention of ragging or punishing any student found guilty of ragging.

9.4 The Commission shall, in respect of any institution that fails to take adequate steps to prevent ragging or fails to act in accordance with these Regulations or fails to punish perpetrators or incidents of ragging suitably, take one of more of the following measures, namely;

i. Withdrawal of declaration of fitness to receive grants under section 12B of the Act.
ii. Withholding any grant allocated.
iii. Declaring the institution ineligible for consideration for any assistance under any of the general or special assistance programmes of the Commission.
iv. Informing the general public, including potential candidates for admission, through a notice displayed prominently in the newspapers or other suitable media and posted on the website of the Commission, declaring that the institution does not possess the minimum academic standards.
v. Taking such other action within its powers as it may deem fit and impose such other penalties as may be provided in the Act for such duration of time as the institution complies with the provisions of these Regulations.

Provided that the action taken under this clause by the Commission against any institution shall be shared with all Councils.

(Dr. R.K. Chauhan)
Secretary

To,

The Assistant Controller,
Publication Division, Govt. of India,
Ministry of Urban Development and Poverty Alleviation,
Civil Lines Delhi -110 054

ii. in case of an order of a University, to its Chancellor.

iii. in case of an institution of national importance created by an Act of Parliament, to the Chairman or Chancellor of the institution, as the case may be.

9.2 Where an institution, being constituent of, affiliated to or recognized by a University, fails to comply with any of the provisions of these Regulations or fails to curb ragging effectively, such University may take any one or more of the following actions, namely;

i. Withdrawal of affiliation/recognition or other privileges conferred.

ii. Prohibiting such institution from presenting any student or students then undergoing any programme of study therein for the award of any degree/diploma of the University.

Provided that where an institution is prohibited from presenting its student or students, the Commission shall make suitable arrangements for the other students so as to ensure that such students are able to pursue their academic studies.

iii. Withholding grants allocated to it by the university, if any

iv. Withholding any grants chanellised through the university to the institution.

v. Any other appropriate penalty within the powers of the university.

9.3 Where in the opinion of the appointing authority, a lapse is attributable to any member of the faulty or staff of the institution, in the matter of reporting or taking prompt action to prevent an incident of ragging or who display an apathetic or insensitive attitude towards complaints of ragging, or who fail to take timely steps, whether required under these Regulations or otherwise, to prevent an incident or incidents of ragging, then such authority shall initiate departmental disciplinary action, in accordance with the prescribed procedure of the institution, against such member of the faulty or staff.

Provided that where such lapse is attributable to the Head of the institution, the authority designated to appoint such Head shall take such departmental disciplinary

responsible for monitoring the database maintained by the Commission appointed under clause (g) of Regulation 8.1.

9. Administrative action in the event of ragging.-

9.1 The institution shall punish a student found guilty of ragging after following the procedure and in the manner prescribed hereinunder:

a) The Anti-Ragging Committee of the institution shall take an appropriate decision, in regard to punishment or otherwise, depending on the facts of each incident of ragging and nature and gravity of the incident of ragging established in the recommendations of the Anti-Ragging Squad.

b) The Anti-Ragging Committee may, depending on the nature and gravity of the guilt established by the Anti-Ragging Squad, award, to those found guilty, one or more of the following punishments, namely;

   i. Suspension from attending classes and academic privileges.
   ii. Withholding/ withdrawing scholarship/ fellowship and other benefits.
   iii. Debarring from appearing in any test/ examination or other evaluation process.
   iv. Withholding results.
   v. Debarring from representing the institution in any regional, national or international meet, tournament, youth festival, etc.
   vi. Suspension/ expulsion from the hostel.
   vii. Cancellation of admission.
   viii. Rustication from the institution for period ranging from one to four semesters.
   ix. Expulsion from the institution and consequent debarring from admission to any other institution for a specified period.

   Provided that where the persons committing or abetting the act of ragging are not identified, the institution shall resort to collective punishment.

c) An appeal against the order of punishment by the Anti-Ragging Committee shall lie,

   i. in case of an order of an institution, affiliated to or constituent part, of a University, to the Vice-Chancellor of the University;